

THE EPISTEMIC AND MORAL ROLE OF TESTIMONY¹

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ABSTRACT

My aim in this article is to provide a critical-productive appreciation of witness testimony that avoids the false and crooked dichotomies that pervade contemporary philosophy of history and historical theory. My specific, pragmatist approach combines the recent accounts of Hayden White about “witness literature” with the “generative-performative” consideration of testimony by Martin Kusch. The purpose is to appreciate, in a non-foundationalist way, the epistemic and moral role of testimony in the constitution of the representation of the recent past. To achieve this I examine the assumed epistemic and political privilege of the testimonies of survivors of state terrorism from the recent past, and I draw on insights of three of the most relevant survivor witnesses: Primo Levi, Victor Klemperer, and Pilar Calveiro. The essay tries to avoid both an epistemic and a moral posture based on something like “the privileged victim’s perspective,” and instead approaches the specific analysis of production and circulation of witness discourse in terms of its contribution to the constitution of the past. That is, it recommends that one look at witness testimony not as an attempt to return to the past but as an action in the present. The result in so doing is to follow some recent results discussed in the new epistemology of witness testimony, which insist that: first, *trust* in testimony is an irreducible function of the acceptance of knowledge (this means that testimonies should not be treated as secondary sources of knowledge or as parasitical on experience and reason); and second, the production-circulation of testimonies does not function only in the context of justification but is also legitimately constitutive of knowledge.

Keywords: history, memory, witness literature, performative, communitarian approach

In this article I critically reflect on the epistemic and political role of witness testimonies for historiography and memory politics. In doing so I focus on so-called “limit events” from the recent past. Specifically, I analyze the so-called privileged position held by the voices of survivor witnesses of genocide violence from state terrorism.

As Hayden White has argued, twentieth-century genocides and politics of state terror possess certain characteristics that set them apart from similar instances that occurred in the nineteenth century. These include the quantity of available pertinent documents and testimonies, as well as serious debate about whether or not it

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is possible to agree on what they represent. The most crucial point is not the difficulty of resolving conflicts about which interpretation is best by appealing to these documents or some “archival” authentication but is, rather, the questioning of the very legitimacy of looking for comprehension of them. Perhaps the best-known example of this questioning is the charge of the “obscenity” of comprehension launched by the filmmaker Claude Lanzmann against any attempt to understand the Shoah, along with the subsequent claim about its “unrepresentability.” This notion refers to the way in which limit-events are said to resist being domesticated through traditional historical comprehension. In the face of this alleged failure of the discipline of history, it is supposed that art and literature have shown more sensitivity to pleas not to forget the horror, that they are better adapted to respond to the privileged role of victims’ testimonies.

My purpose is not to question the privileged status of witness testimony or art’s capacity to respond to it but to avoid the foundationalist and reductivist interpretation of such testimony based on something like the epistemic privilege of the experience of survivors of genocides. Furthermore, I wish to deny the claim of “unrepresentability,” because it does not do justice to some of the sophisticated and influential testimonies that have been written by survivors of dictatorial violence (I have in mind four texts: *Se questo è un uomo* [translated in the US as *Survival in Auschwitz*] and *I sommersi e i salvati* [*The Drowned and the Saved*], by Primo Levi, survivor of Auschwitz; *I Will Bear Witness*, by Victor Klemperer, German Jewish survivor of the Nazi regime; and *Poder y desaparición: Los campos de concentración en Argentina* [*Power and Disappearance: The Concentration Camps in Argentina*], by Pilar Calveiro, a survivor of ESMA²). These works not only present a case against the claim that genocide and state terror events are unrepresentable but also against an essential demarcation between history and literature and between history and memory. Finally, they undermine the privileged position that literature and memory politics hold as genuinely vicarious voices of genocide and state-terror events.

My aim is to provide a critical-productive appreciation of witness testimony that avoids those false and crooked dichotomies that pervade contemporary philosophy of history and historical theory. Specifically, I use a pragmatist approach that combines recent accounts by Hayden White about “witness literature” with the “generative-performative” method of Martin Kusch. The notion of “witness literature” includes not only witnesses’ reports, which is the kind of attestation given by specific demands from a court or historian, with the only purpose of providing facts, but also those witness texts not written under constraint. “Witness literature” also includes the evaluation about witnesses’ opportunity to testify, their decision as to what information to include, and more important, their freedom to give an opinion or interpretation about the facts, all of which provide evidence of the autonomy of the witness. The “generative-performative” account considers testimony as a main source of generating knowledge, even more important than experience and reason.

2. The Escuela de Suboficiales de Mecánica de la Armada (Navy Petty-Officers School of Mechanics) housed one of the worst concentration camps during the last Argentine military dictatorship. In 2004 it was expropriated from the Navy by a law of Congress and turned into a Memory Museum and Research Center on violence of state terrorism.

The purpose here is to appreciate, in a non-foundationalist way, the epistemic and moral role of testimony in the representation of the recent past. That said, what will become apparent is that my rejection of an essential demarcation between scientific history and memory politics does not imply a devaluation of history in relation to literature or memory politics. I try to avoid an epistemic or moral stance that rests on the privileged victim's perspective; instead, I approach the specific analysis of production and circulation of witness discourse in terms of its contribution to the constitution of the past.

When we adopt an epistemic or moral stance on genocide and state-terror events—one based on a victim's privileged voice—we cannot eliminate three presuppositions that are otherwise widely accepted:

- (1) the privileged access of the witnesses to the past events that they witnessed;
- (2) the homogeneity of the experience of the victims; and
- (3) the homogeneity of the ways in which that experience is expressed.

My "new epistemology of testimony," in contrast, recommends looking at the testimony of witnesses not as a journey to the past but as an action in the present. This establishes trust in testimony as an irreducible function of the acceptance of knowledge: testimonies are neither secondary sources of knowledge, nor are they dependent upon experience and reason. Moreover, the production-circulation of testimonies acts not only in the context of justification but also as legitimately constitutive of knowledge.

I. NEW CHALLENGES FOR HISTORIANS

The so-called "new philosophy of history"—as a result of its linguistic and pragmatic turn—has criticized the notion of "historical representation" in terms of its aim of producing a veridical and impartial portrayal of past events. This approach is not necessarily meant to dismiss the realistic claims of historians, but it does mean that historians have to deal, when proposing and evaluating "realistic figurations" of the past, with alternative "realistic figurations" of the same phenomenon consistent with the documentary evidence. Differences among historians compel us to recognize that each historian has to make decisions about which explanations are best, which kinds of emplotment are preferred, and, finally, which ideological compromises about the nature of historical phenomena and the style of presenting them are necessary.³ In other words, the new philosophy of history does not claim that historical evidence is irrelevant or that it is not basic to a historian's research. It does insist, however, that evidence will not determine how historians should colligate their specific aesthetic, explanatory, and ideological options in order to offer a trustworthy and plausible presentation of the past.

However, the twentieth century introduced a novelty: the occurrence of what White calls "modernist events" (including the Holocaust, Hiroshima, and 9/11). These are events of victimization on a massive scale and intensity, together with

3. Hayden White, *Metahistory: The Historical Imagination in Nineteenth Century Europe* (Baltimore and London: The John Hopkins University Press, 1973).

the almost simultaneous occurrence and registration of these events by means of new electronic devices, a registration that generates too much information and, at the same time, the capacity to manipulate it. To White, all of this compels us to rethink our traditional ideas about perception and about the nature of historical events. Indeed, he claims that these events do not lend themselves to representation by narrativization; to him it seems as if their very registration has much more to say than any comprehensive narrative.

According to my interpretation of the Whitean approach with respect to events like the Shoah, the confluence of the occurrence and the registration of a modernist event denotes that testimony about it is not a means for establishing that the massive and organized killing took place. Testimonies about modernist events do not function as they do for historians of, for example, the Russian Revolution, or any other event of the past. In all those cases, the testimonies, like any evidential material, are instruments for the constitution of the event as historical fact. But testimonies from the Shoah's victims are not just elements in addition to the event, but are constitutive of the event itself. By calling some twentieth-century events "modernist," White indicates that it will be modernist literary writing, instead of traditional narrative, that fits best with them. In addition, his approach, according to my reading of his words, provides an alternative to the thesis of the "unrepresentability" of certain events, a thesis that implies that professional history should rightly be displaced by memory politics. Moreover, as much as history is married to writing—specifically, writing in the realistic mode—and, in contrast, as open as memory politics is to other symbolic resources not textual in form and not limited by the conventions of realistic writing, it seems to follow that memorialism would be a less rigid and disciplined platform more apt than history to let the non-academic victims' voices better express themselves.

In the historical production-figuration of the recent past, historians, commemorators, and writers as well as artists find themselves confronted with a great number of "firsthand" testimonies from all kinds of "direct" witnesses. The testimonial hallmark exhibited by the "literature" ("literature" not only in the sense of fiction but of discourse in general) about the recent past cannot be overlooked, and it is well established in the case of those works typically considered historical in nature. It is in this context that the prestige of testimonies in the historicization of the recent past has been insisted upon. The elevation of its value, completely opposite to its depreciation during the era of the "scientization" of history, involves a very important consequence. As long as history is considered to be concerned mainly with objectivity and evidence, it makes a poor showing in the face of powerful images about an inconceivable event beyond the strictly documentable. According to this reasoning, testimonial claims of the political appropriation of the past pose the question of whether academic history is a legitimate instrument for the cognitive appropriation of the recent past.

But no matter the answer to this question, and despite the depreciation of the idea that professional history is objective, in the era of the "new history" ironically there has been no depreciation of a kind of "historical foundationalism," one that takes witness testimony as the basis for the representation of the past. The recovery of testimonies looks like the recovery of what really happened, and the

specific recovery of testimonies in the area of memory politics has had and does have the function of prescribing which versions of the past can legitimately be produced and broadcast.

The decisive question in the case of the recent past is: how should the attestation of any witness survivor or victim be used? Should it be used in the classic documentary function, to prove the occurrence of the events? Or should it function as a legitimate way for the survivors or victims to dispute the appropriation of their past? In-depth research on the institution of testifying has led us to realize that the function of the witness survivor or victim is not just to confirm facts in order to build documentation that can be used to construct future interpretations, but that the testimony functions in fact as the “constitution” of that past itself. Or at least this is what I shall now argue.

II. THE EPISTEMIC POLITICS OF TESTIMONY

The rehabilitation of testimony in the case of limit-events is accompanied by strict requirements and in a paradoxical frame. First, testimonies of direct witnesses—or, as we usually call them, firsthand witnesses—are privileged. Second, testimonies of witnesses who have been victims themselves are privileged as well. Third, we are not open to just any tale from a witness, but are more receptive to tales about victimhood experiences that possess a heroic background, that testify to unspeakable suffering, and, at the same time, legitimate the victim’s survival. The heroic background is the antidote against what I see as a kind of muted suspicion on the part of society, not explicitly stated, that any whiff of complicity or betrayal by the survivor puts the justice of any survival at risk. Fourth and finally, although we have dissociated ourselves from the unrepresentability thesis, survivor witnesses from concentration camps find themselves in a paradoxical situation because they must communicate the unspeakable without either making it unbelievable or describing it in a banal way. I will call this conjunction of testimonial proliferation, interpretive undecidability, and unspeakability of the horror the “the paradox of attestation.” So, to anticipate my conclusion, I will argue that taking charge of this paradox requires all those who engage in a dialogue with testimonies to abandon any notion that testimony constitutes a mere document.⁴

These observations do not imply that distinctions between real and false firsthand witnesses are useless. These observations also do not imply that distinctions between testimonies about events that happened and testimonies about events that did not happen—between testifications and forgeries or falsifications—are unimportant. Our social practices count on standard protocols of discrimination between pseudo and legitimate witnesses. But the specific task of historical comprehension—this could be explanation or interpretation, to create an image, or to make sense—cannot be described as a job of authentication of documents or legitimation of testimonies in order to verify the occurrence of past events. Although

4. On this precise point, White affirms that “a great deal of witness testimony has been offered less in the interest of documenting ‘what happened’ in the death camps than in simply asserting, against both common sense and revisionist lie, the occurrence of this unthinkable event . . .” (“Figural Realism in Witness Literature,” *Parallax* 10, no. 1 [January–March 2004], 114).

archival work is absolutely indispensable for historical research in the same way that the reliability of observations and experiments is indispensable for empirical sciences, not much can be appreciated in a historical controversy if we think that historians are dealing merely or mainly with questions of authenticity. The proof of authenticity of any testimony is not the fundamental test for inclusion in a historical account. If we have specific doubts, we appeal to our protocols of authentication, but if we do not, we must ask how a piece of testimony contributes to the work of understanding.

The foregoing reveals that an entanglement exists between the purpose of obtaining knowledge of some event or experience and the moral message that could be extracted from the revealed knowledge, guaranteed by the legitimacy of the speaker. So, we must follow those who believe that a more profound analysis of the institution of testimony lets us discern the importance of the choice of language or style of testifying. Additionally, in the case we are presenting, the “hero-victim position” is often considered sufficient to legitimate the voice of the witness. But in a strict sense we do not agree with a substantive or homogeneous characterization of “victim” or “hero” either, for there are multiple and disputed ways of giving sense to these expressions. The stylistic choice—and this is my point—is not only an unavoidable but also an essential source of testimonial legitimacy for the witness and for the audience, because in the production of their testimony witnesses will appeal to the same resources available to the rest of society.⁵

In order to obtain a more profound insight into this phenomenon that I call “the moral-epistemic entanglement,” it is pertinent to rethink three paradigmatic cases of attestation by three survivors of totalitarian regimes and state terrorism: Primo Levi, Victor Klemperer, and Pilar Calveiro. What leads me to focus on these three testifiers is the common question that inspires their texts: to what extent do dictatorships and their success in executing their repressive politics depend upon the consent of the common citizenry? That is an authentic question in trying to comprehend these regimes and the terror they wreak. Moreover, these three witnesses, eschewing the hero-victim position, commit themselves to approaching their subject without embracing either blame or exculpation. They acknowledge the contradiction between people’s current explicit rejection of state terrorism and their bystander attitude during those days—most people bowed to political repression and even accepted the censorship of their own opinions, restrictions of their transit, and so on. In other words, these three witnesses try to comprehend the contradiction between people’s previous attitudes and actions and their discourses and behavior in the time of the terror. At the same time, Levi, Klemperer,

5. If we find ourselves faced with a case like the testimony of Binjamin Wilkomirski, this would not confute my thesis but would confirm it, because what made that masquerade possible was not only proof that the Holocaust occurred but also Wilkomirski’s use of resources that belong to our legitimate ways of talking about it. In a quite precise sense, Wilkomirski did not make it up. He composed a testimony out of previous and available readings or from hearsay. But this does not invalidate the meaning or implications of those resources; it only points out that it is not the testimony of an authentic witness or that it is a good literary reenactment of what we would consider a testimony of the Holocaust and, with previous notice, that it could communicate the same thing that a real witness could have communicated had he appealed to those resources.

and Calveiro combine three compromises: rejection of the claim of unrepresentability; refusal to search for a definitive moral judgment about that “grey zone” between collaborators and common people; and, finally, consciousness of the substantial role that stylistic decisions play in the fulfillment of epistemic and moral goals. These compromises are essential and not just ornamental. Attestation is a performative act. Although the experience of “having been there” or “having suffered in their own flesh” can motivate their desire to attest to what they saw and endured, their attestation is not a reflex of their experience.

Ultimately, as we shall see, no style, discipline, or institution is privileged in dialoguing with witnesses. Their specific accounts about the events are as exposed to public criticism as any other account.

III. SCIENTIFIC RHETORIC AND ATTESTATION

Levi wrote two books that I will discuss: *Se questo è un uomo* (translated as *Survival in Auschwitz*) and *I sommersi e i salvati* (*The Drowned and the Saved*), which was composed forty years later. *Survival in Auschwitz* gives an account of Primo Levi’s experience in the concentration camp to which he had been deported after being taken prisoner as a member of the Italian resistance. Although the text is generically a tale or memoir, Levi warns us from the beginning that he has adopted an austere and nonaesthetic style, with the purpose of transmitting the truth of what happened in the camps in the most objective way possible. Levi held a PhD in chemistry, a science that he deeply loved and that, by chance, helped in (but did not determine) his survival, since he was assigned to laboratory work. Chemistry was Levi’s means of life—after his incarceration—but it also, as White has remarked, steeped him in the scientific method, and this allowed him, once free and back in Italy, to claim to observe events in the camps as they really were, not as his desire or prejudice would wish them to be. His background had trained him to weigh, measure, and break down compounds into basic elements, and then reassemble them into different combinations. In *The Drowned and the Saved* Levi claims, as White puts it, “to be writing in something like a ‘scientific’ style or mode and he addresses the question—theoretical in nature—of the proper way for anyone, survivor or interested observer, to write about the Holocaust event.”⁶ We can see here a clear example, from witness literature, of the assumption that it is necessary to take charge of the three dimensions that compose all historical writing: aesthetic, epistemic, and practical. All of them unfold in *The Drowned and the Saved*.

First, Levi does not invoke his authority as a firsthand witness; *The Drowned and the Saved* “draws from a suspect source and must be protected against itself. So it contains more considerations than memories, lingers more willingly on the state of affairs such as it is now than on the retroactive chronicle.”⁷ Second, according to Levi, no surviving prisoner can grasp in its true dimension the complexity of such a phenomenon. Political prisoners became privileged witnesses

6. White, “Figural Realism in Witness Literature,” 114.

7. Primo Levi, *The Drowned and the Saved*, transl. Raymond Rosenthal (New York: Vintage Books, 1989), 35.

because “disposed of a cultural background which allowed them to interpret the events they saw; . . . their testimony was an act of war against fascism. . . .”⁸ Third, Levi rejects any kind of pure aestheticism in certain literary representations of the Lager not only because it can result in an exculpatory account but also because it can be morally offensive.⁹ Perhaps this is why he had a lot of trust in the austere chemical style of description. Fourth, Levi paradoxically resorts to classical literature in his attempt to find images that make sense of daily life in the Lager. This is paradoxical because, despite his claim to be writing in an austere and scientific style, can anyone seriously consider the story of Nyiszli, the young girl who survived the gas chamber, to be an expression of such a style? Can we recognize the style of chemical writing in the face of a rhetorical question like: “Can one help but think of the ‘unusual respect’ and the hesitation of the ‘foul Monatto’ when faced by the individual case, faced by the child Cecilia killed by the plague whom, in Manzoni’s novel *The Betrothed*, the mother refused to let be flung on the cart together with the heaped up corpses?”¹⁰

I am not saying that Levi engaged in some sort of performative self-contradiction. As a good chemist paying attention to facts and conceptual clarity, Levi classifies people in the way he would natural elements in the periodic table. But White lets us see that classes are presented in figures and tropes that give them their concreteness and their power to convince us of the author’s sincerity. Literature provides him with images that can convey the stereotypical meanings attainable or understandable by all of us who were not there.

We can see clearly why Levi provides us with an example that argues against the invocation of the unrepresentability of the Holocaust and also rejects essentialist demarcations. In their preoccupation to make clear their general rejection of all kinds of systematic research about the massive perpetration of crimes, the critics of the “representability” of limit events tend to slip into a theoretical naïveté, the result of their belief in a sharp distinction between high culture and social science, on the one hand, and common sense, on the other. They ignore the fact that social theories, as well as literary works, are simply available parts of a wider cultural background. After all, it is possible that many survivors who wrote about the camps had previously been at least peripherally familiar with social studies. So, how and why should their experience of horror deprive them of their previous experiences as sociologists or scientists or simply good observers of human nature?

No one dimension—epistemic, ethical, or aesthetic—should be devalued in favor of another. Now we understand why Levi appeals not to his own experience but to the tools of scientific and literary figuration in order to accomplish his purposes. Nor is he committed to simple categories into which those whom he encounters easily fit: although it is very disappointing for those who desire accounts of heroic behavior in the face of evil and terror, one of Levi’s goals is to understand “collaborationism.” This might be a very disappointing phenomenon

8. *Ibid.*, 18.

9. White, “Figural Realism in Witness Literature,” 115.

10. Levi, *The Drowned and the Saved*, 49.

for our valorizations of humanity, but it offers a far richer and more nuanced account of what he underwent.

I Will Bear Witness, 1933–1941 and 1942–1945 by Victor Klemperer (1881–1960) illustrates one of the two privileged means of testimony: the diary (the other is the confession). This work was first published in Berlin in 1995. Klemperer was a philologist and a German literature researcher, but his real subject of study was eighteenth-century France—in keeping with a certain minority spirit opposed to the general German francophobia. He avoided deportation from Germany to a concentration camp because of a series of contingent events, for example, being married to a Protestant. Klemperer and his wife continued to live in Dresden until the blitz on the city in 1945, when they were miraculously saved. During the war years, Jews in mixed marriages had an ambiguous status. They were privileged in comparison to deported Jews, but every part of their lives depended on the will or the fortune of their non-Jewish partners—was the partner brave enough to remain married? Did fortune prevent the partner's death? (If the marriage dissolved or the non-Jewish partner died, the single divorced or widowed Jew would be immediately deported.)

The diary entries show us how every aspect of daily life grew progressively more precarious. In 1935 Klemperer was fired from the university, allegedly not because he was a Jew but because of budget restrictions and “given the ‘irrelevance’ of his classes for a Tech Institute.” He could keep his pension, although it would be gradually reduced. Thanks to his wife's lineage the couple obtained a bank loan and were homeowners, and their home was never expropriated. Notwithstanding, because of Victor's Jewish ancestors, in 1940 they were compelled to rent out their home and move into a Jewish house.

Victor's diary contains all kinds of perceptive and deep remarks. Some of them are theoretical in character and would be included in two other publications: *Curriculum* and *Lingua Tertii Imperii*. The diary has been considered a refutation of Daniel Goldhagen's thesis, because we can find in it numerous compelling small stories and anecdotes about ordinary Germans (merchants, police officers, postmen, clerks, and so on) who were far from anti-Semitic. They were uncomfortable with the general situation and on many occasions helped the Klemperers with food coupons, potatoes, journals, and writing paper. In the diary's pages, Klemperer successfully communicates how impossible organized acts of collective resistance were, an impossibility that we can easily understand to be the result of a progressive routinization of that kind of precarious life focused solely on getting supplies necessary for survival in a war economy.

It is important to stress these observations, given that Klemperer had already in 1942 pointed out that the existence and the meaning of Theresienstadt was known, as was the final destiny of Jews deported from Berlin: all of them were dead.¹¹ On February 12, 1945, Victor Klemperer was notified that every work-competent Jew was to be deported from Dresden; he was to show up on February 16. But three days before that deadline, the bombing of Dresden took place—when the Royal

11. Victor Klemperer, *I Will Bear Witness 1942–1945: A Diary of the Nazi Years* (New York: Modern Library, 2001), 246.

Air Force dropped phosphorus bombs. The couple would travel across Germany over the next three months, and then finally return home to Dresden. During those months of running, Klemperer did not wear the yellow star.

Klemperer provides us with one of the best descriptions (recorded almost at the same time as the events described occurred) of how daily life was destroyed piecemeal by the progressive hardening of the repressive policy by the Nazi regime, from its initiation, during the prelude to war, and then its evolution during the war until the final defeat. The daily odyssey to obtain food or food vouchers or a license to get a doctor's appointment, or a piece of newspaper—all small worries compared to the genocide that was taking place in the occupied countries—prevails with such force that it absorbs all the attention and deactivates any radical political thought or initiative. Klemperer approaches all these questions with a humble and wise spirit, looking for comprehension instead of making sweeping generalizations or quick and easy judgments. His diary sheds light on one of the most important questions of the twentieth century: how does a whole society gradually naturalize its precarious life under a repressive regime, that is, how does it come to accept not only the lack of freedom of political opinion, and censorship, but also the impossibility of collective resistance? How do neighbors become not only observers of repressive policies applied to others but also obedient participants in repressive limitations imposed upon their own daily lives? The steady challenge to preserve domesticity and something like labor duties creates a delusion of routine, but it also creates supportive bonds among neighbors, all together feeding the illusion of normality and obligations to others.

Klemperer's diary couples an attitude of "participant observer"—he could play a role in daily life during the Third Reich because he was not deported—with the attitude of an analyst of a dictatorship's discourses and effects on the social life of his subjects. Thanks to his background as a philologist, a peculiar style that goes through these more than 1000 pages shows that he was always aware that in ordinary life under dictatorships there is not enough room for ordinary individuals to effect changes in policies. The power of the system is absolute and lived as absolute. The imposed order is seen as unchangeable; it allows only the daily task of figuring out how to obtain some minimal benefits necessary to go on living.

Poder y desaparición: Los campos de concentración en Argentina (*Power and Disappearance: The Concentration Camps in Argentina*), by Pilar Calveiro, exemplifies one of the best analytical efforts to understand the phenomenon of people's "desaparición" in Argentina.¹² Calveiro was kidnapped, "chupada," on May 7, 1977 by an Air Force Commando unit and detained at "Mansión Seré." After being transferred to several clandestine detention centers (similar to Nazi concentration camps but often in the middle of the main urban areas of Argentina and in plain sight), Calveiro finally was incarcerated at the ESMA; she was finally released in mid 1979. Even though *Poder y desaparición* was based on the personal experience of a victim who survived one of the worst crimes perpetrated by Argentine state terrorism, the book is not written in the usual style of

12. Pilar Calveiro, *Poder y desaparición: Los campos de concentración en Argentina* (Buenos Aires: Colihu, 2004).

witness literature: it does not use the first-person singular. Nor is it a diary or a testimonial (not surprising, given that the work is part of Calveiro's PhD thesis). Nevertheless, we should not think that academic discipline, which compels a critical distance, determined the author's choice of style. Calveiro chose to share her experience through a style of Foucauldian-theoretical writing; she chose to testify about her suffering without restricting herself to simply documenting the horror of her incarceration. The option of a narrative in the third person, breaking the conventions of testimony, prevents the reader from seeing the victims as only passive sufferers, that is, it endows the victim with the powers of agency. Calveiro's work, like *The Drowned and the Saved*, sometimes uses a typological and analytical description and, at other times, to use a Geertzian term, uses a "thick description" of what I would call "concentrationary culture," given that the authoritarian rules inside the camp are valid in the ordinary life around it.

During the 1970s, the military exerted a harsh discipline on Argentine society in order to shape it into its own image. Worse, since the beginning of the century and under an alleged military order, corporal punishment—essentially torture—was imposed on both the military and on conscripts, that is, on the whole male population of the country.¹³ So, a kind of equation between the flow of obedience and the dilution of responsibilities was created in that command implies authorization. Fear had become joined to the obligation to obey. This helps us understand the peculiar place that military service had in Argentina, as well as its connection to what I call the quick "delivery" of young unskilled men to fight in the Malvinas War without their consent. How do we explain that a whole society accepted those abusive experiences during conscription as an important part of male education? How could parents become accomplices in such humiliations endured by their sons during the months of military instruction? The answer to these questions is that the very submission to a dictatorial regime creates certain duties: massive recruitment, lottery, medical exam, work and study licenses, and so on—all of which bureaucratize conscription, offering a routine that, Calveiro would say, "naturalizes" the atrocities and inhibits any inclination to resist.¹⁴

Even though, as Calveiro rightly says, "The spread of discipline across society creates a consensus toward obedient behavior, and the possibility of insubordination appears only once in a while,"¹⁵ it would be better if we read Klemperer's rich descriptions of those daily acts of cooperation among neighbors as small acts of insubordination. But there is a paradoxical conclusion: if we look at them from a larger perspective, they contribute to the stability and invulnerability of the totalitarian regime. Klemperer and Calveiro describe their societies bluntly, showing a genuine knowledge of the state's repressive violence, but this knowledge was not necessarily discursive; it was more akin to the phenomenon of practical awareness described by Anthony Giddens.¹⁶

13. *Ibid.*, 11.

14. *Ibid.*, 12.

15. *Ibid.*, 13.

16. Anthony Giddens, *The Constitution of Society: Outline of the Theory of Structuration* (Cambridge, UK: Polity Press, 1984).

The perpetration was not absolutely unknown because, as Calveiro says, “The authentic secret, the true unknowledge would have an effect of naive passivity but never the paralysis and the stunning engendered by terror itself. What is half known terrifies: what scares entails a secret that cannot be revealed.”¹⁷ Because nobody is completely safe, everybody must obey. There is no chance of open political confrontation, although there is room for isolated and sporadic acts of resistance, as demonstrated by small acts of cooperation and assistance among close neighbors. In the particular case of conscription (*colimba*) in Argentina, people always tried to help young men gain exemption from this duty or to get a better position in the army that would not interfere (or would interfere the least) with their current work or study.

What to say about these three works by Levi, Klemperer, and Calveiro—a novel, two essays, and a diary? They are of different genres but are coincident in the specific finality of their attestation. In the case of Klemperer, even if he wrote a diary that documents ordinary daily life during the Nazi regime—a privileged linguistic resource of attestation because he registers his own experience in the first person almost at the moment of the happenings—his testimony can be grouped with those of Calveiro and Levi. Klemperer was not a concentration-camp survivor, but in all three cases—and in an extreme sense—the legitimacy and authority of the testimonies do not reside in the experience of survival, because the surviving itself involves *not* going through the radical experience: death. It has nothing to do with measuring the quantity and quality of the harm suffered, nor with scrutinizing the conditions that make survival possible. Finally, the purpose of the testimonies resides in the bravery and integrity of communicating the horror to the world, interpreting state terrorism or a figure of it. The authority of testimony depends not upon the past experience of suffering but on the social purpose of communicating. According to Avishai Margalit, every writer of a private diary has a secret—not necessarily unconscious—which is the wish that the diary be read one day by another person. “[Ludwig] Wittgenstein famously renders the project of writing a strictly private diary, in the sense of a diary whose author is the only one who can in principle understand it, as a conceptual impossibility.”¹⁸

So, given this important goal, the selection of style or the choice of which discursive resources are going to be used are not secondary and dispensable choices. Nonetheless, there is a crucial point to stress in these three testimonial works that makes the paradoxical double function of testimony—epistemic and political—more complex. With their generic choices, Levi, Klemperer, and Calveiro would seem to support the presupposition that the political purpose is backed up by the epistemic, to the point of making explicit their compromise with that style of transmission which lets the truth of facts trump anything else.

Now, according to them, this epistemic goal could never be accomplished through a plain story of experience. No approach, no language, no style is able to satisfy the purpose of telling the truth. The assumed preeminence of the epistemic over the practical-political dimension would seem to explain why, in order to say

17. Calveiro, *Poder y desaparición*, 147.

18. Avishai Margalit, *The Ethics of Memory* (Cambridge, MA: Harvard University Press, 2004), 158.

the unspeakable, Calveiro produces a sociological anatomy, Levi a chemical sociology, and Klemperer not only an ethnology of daily life during the Third Reich but also a philology of ordinary language. Klemperer deployed an enviable sharpness concerning Nazi “creativity” of discursive expressions and words. It is as if Klemperer practiced discursive analysis before it was born.

I cannot think of any better examples of the paradox of attestation than those provided by these three writers: what deep presuppositions about the public role that they should play pushed them to make complete use of their own resources as professionals in order to enlighten the most painful experiences of their lives?

IV. WITNESS LITERATURE AND THE GENERATION OF KNOWLEDGE

At this point, I can make several suggestions. First, given their stylistic choices, Levi, Klemperer, and Calveiro are definitively far removed from the “obscurity” of the representation of horror; instead, they choose to write in a style akin to scientific language. Second, they are also far removed from foundationalist reductionism, which limits the function of testimony to plain documentation of experience, and which requires that later historians and commemorators be in charge of carrying out the rightful political and epistemic use of witness testimony. However, we can perceive in the work of these three testifiers something that many testifiers feel, namely, discomfort with their own authority as witnesses. It is this discomfort that lies behind the choice of an aseptic, austere language that seemingly allows testifiers to give their testimony without appealing to the authority of their own experiences—even though their firsthand experiences are precisely what gives them the authority.¹⁹

My own accounting is not limited to registering the explicit or implicit intentions of Levi, Klemperer, and Calveiro, but it recommends paying attention to the resources that equally intervene in the production and in the circulation of their testimonies. So, their discomfort and the stylistic selections found in their writings allow us to appreciate their texts as examples that undermine foundationalism and as examples of the true role of attestation in the constitution of limit events. Let me justify these claims.

At first sight, we could think that the choice of a proto-scientific language results from the belief that it is possible to draw a more or less clear distinction between the factual and the figurative or, in other words, between descriptive and aestheticizing writing—the descriptive providing the basic elements that serve as

19. In a recent article, Carolyn Dean discusses minimalism as a rhetorical stance in accounts of traumatic events; she argues that the minimalist stylistic option expresses humility and avoids any *kitsch* figuration of traumatic events (Carolyn Dean, “Minimalism and Victim Testimony,” *History and Theory, Theme Issue* 49 [2010], 85–99). Rich and colorful descriptions of the suffering by the victim or by the historian are dismissed in our cultural times. I do not disagree with this remark, but I think this is a limited consideration about the status of testimony, its cultural significance, and its relationship with history and memory studies. The option for a minimalist or, as I prefer to call it, austere style is a result of taking testimonies neither as the expression of inner experience, nor as the register of the facts. Witnesses and audience are interested in the circulation of testimonies because they provide us with considerations or accounts (in their own right) of the events. The inclusion of graphic descriptions of suffering will be evaluated in terms of their contribution or not to the thought or image that the testimony tries to express.

the foundation, and the aestheticizing being either a mere ornament or an emerging distortion.²⁰ Frequently, witness literature is normally thought of as belonging to what is called “the literature of fact.” Levi would seem to be a perfect example of this. However, in “Figural Realism in Witness Literature,” White offers a deconstruction of the claimed “asepsis” of *Survival in Auschwitz*, showing how *La Divina Comedia* informs the structure of the book as well as several specific passages, and demonstrating the book’s connection with *The Truce* that follows it.

But even more illustrative is the case of the typology of prisoners presented in *The Drowned and the Saved*, particularly when Levi recreates his partner Henri, who, as White points out well, is successively described

first, by being likened to the painting of (the homosexually encoded) “San Sebastiano” by the (notoriously homosexual) sixteenth-century painter “Sodoma” (Giovanni Antonio Bassi, d. 1549); and then figured as a rapist-insect which kills its prey by “penetrating” and planting its eggs inside them; and then, finally, defined as the kind of diabolical seducer represented by the snake in the Garden of Eden.²¹

White asks himself, then, whether this description must be read as a literal characterization of the person “Henri” or whether it can be read in a figurative mode; does it talk about the writer of the description or only about the person it purports merely to describe?²²

Two important consequences can be derived from White’s application of literary theory to Levi’s texts. On the one hand, it convinces us that Levi’s text, like any other testimony—no matter how austere its style—is certainly figurative. Therefore, its meaning must be framed at least in part in the language of figuration, that is, in order to grasp its significance we must pay attention to those tropes to which the text appeals. On the other hand, it shows that this figuration does not make those testimonies less “objective,” “acute,” or “veracious”; indeed, White also makes us aware that the “expertise” that our witnesses display in their use of the resources that literature offers is not something to repress or hide. On the contrary, it is something to celebrate and promote. Even more, I argue that the very reason for the choice of a scientific style does not come from its supposed literal nature. It is the choice of one specific way of figuration instead of some other. Perhaps the main (not necessarily conscious) reason resides not in the factual power of scientific language but in giving the authors a tool that enables them to shed their discomfort with the authority of their experience as victims.

It is interesting to speculate that the discomfort of our three witnesses comes in part from some kind of cognitive foundationalism in which testimony is at best a secondary and provisional tool useful only if it is scientifically verifiable. Even if Levi, Klemperer, and Calveiro commit themselves to the obligation of testifying, they are suspicious of the mere attestation itself. To the audience it is no more than the word of some person or another, so the audience could ask why they should trust in one person’s word when it could be tested by their own reason and experience. In contrast, I suggest that the reason for choosing to go beyond the registration of internal experience is to be aware that testimony is the primary and

20. Primo Levi explicitly follows this belief (*The Drowned and the Saved*, 35).

21. White, “Figural Realism in Witness Literature,” 121.

22. *Ibid.*, 122.

irreducible way of obtaining knowledge. So, the means or resources of transmission of our experience of some events is not something forgettable, because what is transmitted is our knowledge of them; what is circulating is “knowledge”—fallible, but knowledge nevertheless. As Margalit says, the expression “our observation” hides the fact that my own meager base of observation comes mostly from the testimony of others. “This is true for all our walks of life: science, religion, history, court, and of course for our collective memory. . . . I am caught in a network of witnesses.”²³

Finally, we have to take one more step. To understand the nature of witness testimony we must move beyond the consideration of testimony as evidence for testing cognitive interpretations, that is, as belonging to the “empirical base.” We need to adopt a pragmatist attitude that transcends the narrow and reductive account of testimony as no more than an instrument that transmits portions of information about experience, and thus to assume a social account of knowledge as a social referent. As I have already said at the beginning of this article, I follow here the work of the philosopher and historian of science Martin Kusch, articulated in his *Knowledge by Agreement* and “Testimony and the Value of Knowledge.”²⁴ In *Knowledge by Agreement* Kusch suggests that knowledge is created by a communal performative, constituted by references that occur in endless acts of testimony as well as in other forms of talk that claim that something is knowledge, challenge knowledge, testify to knowledge, question knowledge, and so on. All these expressions are not just descriptions of an external referent previously constituted, that is, “The Knowledge.” Rather, in Kusch’s terms, each direct or indirect reference to knowledge creates knowledge as a status, because each reference is a performative act. This has nothing to do with suggesting that knowledge thereby constituted is an arbitrary invention or mere construct. Following the path outlined by Ludwig Wittgenstein, Elizabeth Anscombe, and David Bloor,²⁵ it is built on the assumption that knowledge is a social referent. Performative acts that constitute knowledge are effective in each testimonial preference and in each cognitive-referent act of talk. Thus, knowledge is a *status* to which testimony can aspire insofar as it is constituted in and through more testimony.²⁶

This communal and social approach has three valuable consequences for the subject of the nature and role of witness testimony. First, it frees witness testimony from the idea that it is essentially a transmission without interpretation (and therefore distortion) of a direct experience. Second, it calls upon survivors of limit

23. Margalit, *The Ethics of Memory*, 180–181.

24. Martin Kusch, *Knowledge by Agreement: The Programme of Communitarian Epistemology* (Oxford: Oxford University Press, 2002); *idem*, “Testimony and the Value of Knowledge,” in *Epistemic Value*, ed. A. Haddock, A. Millar, and D. Pritchard (Oxford: Oxford University Press, 2009), 60–94. Kusch has explicitly recognized his debt to the sociologists from The Strong Programme of the Sociology of Scientific Knowledge (Barry Barnes and David Bloor)— and to the historian of science Steven Shapin. The first two have contributed to the development of Kusch’s communitarian epistemology, and the last one has shown the role that confidence and trustworthiness played at the beginning of the experimental revolution.

25. The self-referring character of social institutions or the fact that they are giant performative preferences made by a social collective is the account given by the Strong Programme, and was first described by Elizabeth Anscombe.

26. Kusch, *Knowledge by Agreement*, 71.

events to participate in the collective job of creating and shaping representations of what has happened. Third, by insisting that testifiers play the game of cognitive construction, it directs attention to the linguistic conventions of testifying and to its performative character. That is, it allows us to see the language games in which testimonies take place in ordinary life. Then we can appreciate that testimonial institutions pervade many domains each with diverse rules that, under the influence of foundationalism and the court-witness model of evaluating witness testimony that embodies it, often cannot be seen.

“Testimony and the Value of Knowledge”—the second of Kusch’s works that I wish to recover—faces up to the question about what is at stake when we accept “another’s report.” The institution of testifying must honor the informer, for, in this very act, we can see the tight bond between epistemic and moral dimensions. In this manner we further advance an integrative and non-foundationalist consideration of survivor testimonies. We accept them not because they come from some direct experience but because of our confidence in the testifier’s expertise in dealing with the “unbearable.” In the spirit of Barry Barnes, Kusch explains how knowledge attributions play an important role in collective interaction that constitutes the testimonial institution by honoring informants. Every time we recognize that someone is trustworthy, we honor him or her as well, and we encourage others to do likewise. Knowledge is a collective good to which we are free to resort but which we must ourselves help to construct precisely because, as Kusch puts it, “The community cannot survive without the institution of testimony.”²⁷ In contrast, withholding or denying that role is a way of censoring and dishonoring,²⁸ and ultimately will have the effect of destroying the knowledge-community.

We can conclude with two assertions. On the one hand, the recovery of testimony that Kusch describes is closely connected to his communitarian account of knowledge in which there is an inextricable bond between the evolution of concepts and the development of social relationships.²⁹ The real question about meaning and knowledge is “What is the role, and the utility, in our lives of our practice of asserting (or denying) the form of words [e.g., of meaning attributions] under these conditions?”³⁰ When we extend this to knowledge, we realize the important role played by testimony. On the other hand, Kusch recovers the notion that virtuous information, sharpness, and honesty are virtues that testifiers must display in order to be able to provide epistemically acceptable and useful information. If we consider only the accuracy of information, we will not be able to appreciate—with enough depth, Kusch says literally—the ways in which witness testimony as an institution is a collective good.

27. Kusch, “Testimony and the Value of Knowledge,” 20.

28. *Ibid.*

29. This has been stated most powerfully in Winch’s interpretation of Wittgenstein, and Kusch follows it.

30. This question was asked by Saul Kripke, *Wittgenstein on Rules and Private Language: An Elementary Exposition* (Cambridge, MA: Harvard University Press, 1982), 73, and recovered by Bloor and Kusch.

V. CONCLUSION

Now we can come back to the dilemmas formulated at the beginning of this article: the paradox of attestation, the double role of testimonies of limit events (epistemic and practical-moral), and the discomfort that testifiers seem to have with the authority of the victim, which leads them to choose a scientific style. The performative account of testimony is the consideration that matches best with the Whitean notion of the modernist event to shed light on the nature of witness literature. Instead of thinking of testimony as if it were a linguistic expression of a unique, private, and raw experience—whose traumatic character resists being represented—the notion of the “modernist event” captures the abundance of testimonies that fight against being framed as the unthinkable and the unspeakable. So the demand for more creativity or expertise in the appropriation of discursive resources increases rather than diminishes. Therefore, we must ask: upon what does the acceptance of testimony depend?

Acceptance is not dependent upon any correspondence between the victim’s experience and the ability of the audience to revive or experience it. Nor is it a question of matching the experience to other documents. If we search for some correspondence such as this we fall again into empiricist foundationalism. On the contrary, testimonies are an original part of the production and circulation of knowledge, and we accept them thanks to their meanings created in and through their promulgation and the responses of others to them, not as some report of some putative private cognitive contents. At the time of evaluating, analyzing, discussing, or inspiring testimonies, we appeal to the same resources to which we appeal when analyzing any discursive production.³¹ When presented with the witness testimony of experience of the concentration camp or other places of horror, we are dealing not with a direct representation of a naked experience but with the cultural resources that constitute the politics of identity of the whole society.

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31. This is the model followed by sociologists of scientific knowledge. They unveil the cultural resources available in the contexts in which scientists work. In his research on the Scientific Revolution, Steven Shapin tracks how confidence about testimonies makes it possible for scientists to appropriate the expertise of craftsmen, magicians, alchemists, and even artists. Steven Shapin, *A Social History of Truth* (Chicago: University of Chicago Press, 1994).